

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Moriba Geoffroy	Team: Squad #03	CCRB Case #: 202203959	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 06/15/2022 6:00 PM	Location of Incident: 111th Precinct stationhouse	18 Mo. SOL 12/15/2023	Precinct: 111
Date/Time CV Reported Fri, 06/17/2022 12:31 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 06/17/2022 12:31 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Brian Bang	20481	938022	111 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Brian Bang	Abuse: Police Officer Brian Bang did not process § 87(2)(b) complaint regarding an officer.	A . Substantiated
B . PO Brian Bang	Abuse: Police Officer Brian Bang did not process § 87(2)(b) complaint regarding an officer.	B . Substantiated

Case Summary

On June 17, 2022, § 87(2)(b) filed this complaint with the CCRB via its call processing system.

On June 15, 2022, at about 6:00 p.m., § 87(2)(b) and his fiancée, § 87(2)(b) went to the 111th Precinct Stationhouse to file a complaint. Earlier that day, § 87(2)(b) was given a ticket by a Traffic Enforcement Agent (TEA) for parking in a no standing zone. Outside the stationhouse, they were assisted by PO Brian Bang of the 111th Precinct, who told them that they could not file a complaint at the stationhouse (**Allegations A-B: Abuse of Authority, Substantiated**). No arrest or summons resulted from this incident.

The investigation obtained stationhouse surveillance footage. The videos are in IA #37 [BR 1] and are summarized in IA #40, #43, and #47 [BR 2-4]. The nature of the incident did not require activation of body-worn cameras per the Patrol Guide.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Brian Bang did not process § 87(2)(b) complaint regarding an officer.

Allegation (B) Abuse of Authority: Police Officer Brian Bang did not process § 87(2)(b) complaint regarding an officer.

§ 87(2)(b) testified that he received a call from § 87(2)(b) that she had been given a ticket for a parking violation by a Traffic Enforcement Agent (TEA). The TEA screamed and pointed his finger in her face. § 87(2)(b) returned to her vehicle, called § 87(2)(b) and told him what had happened. When § 87(2)(b) returned home, § 87(2)(b) called 311 to file a complaint, but was directed to go to the 111th Precinct Stationhouse. They both went to the stationhouse where an officer, whom the investigation determined was PO Bang, was standing outside. They approached him and told him that they wanted to file a complaint against the TEA who verbally harassed § 87(2)(b). PO Bang told them that they could not file a complaint at the stationhouse and that traffic agents are not considered officers. § 87(2)(b) told PO Bang that she called 311 and was directed to file a complaint at the stationhouse. § 87(2)(b) asked PO Bang where they could file a complaint against the TEA. PO Bang went into the stationhouse and returned with a piece of paper that had the phone number for the CCRB. They took the number and left the stationhouse. They were not given the opportunity to file a complaint [BR 5].

§ 87(2)(b) testified that she was walking to her vehicle after work when she saw two TEA agents. When she approached them, TEA § 87(2)(b) said that she had violated a “no standing at anytime” sign. She told him that she could not see the sign because it was obscured by a tree. TEA § 87(2)(b) became angry, approached her, pointed his finger in her face, and said that she was being rude for talking back to him. She became scared and was shocked that he spoke to her in an aggressive manner. He gave her a ticket and left. § 87(2)(b) got into her vehicle, called § 87(2)(b) and told him what had happened. They both went to the stationhouse and were assisted by PO Bang. They told him that they wanted to file a complaint against TEA § 87(2)(b). PO Bang told them that they could not file a complaint at the stationhouse. He said that they needed to call the CCRB. PO Bang went into the stationhouse and returned with the number for the CCRB. They took the number and left the stationhouse [BR 6].

Stationhouse footage of the main entrance showed at 2:03:00 minutes, § 87(2)(b) and § 87(2)(b) arriving at the 111th Precinct stationhouse. They spoke with PO Bang outside where § 87(2)(b) gave him the summons she received earlier. They continued to speak and at 2:05:51 minutes, PO Bang goes inside of the stationhouse. At 2:06:38 minutes, he returned with a piece of paper, which he gave to § 87(2)(b). They continued to speak again and at 2:07:18 minutes, § 87(2)(b) and § 87(2)(b) leave [BR 1].

PO Bang testified he was working stationhouse security while waiting for his partner, PO Christopher Senft. While outside, he was approached by § 87(2)(b) and § 87(2)(b) who said that they wanted to speak with an officer supervisor. PO Bang recalled speaking to § 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party [BR 8].
- § 87(2)(b)
- PO Bang has been a member of service for 17 years and has been a subject in four other CCRB complaints and 10 allegations, of which four were substantiated.:
 - Case # 201710579 involved substantiated allegations of interference with a recording and search of a recording device against PO Bang. The Board recommended Command Discipline B and the NYPD imposed Command Discipline B.
 - Case # 201900182 involved substantiated allegations of refusal to provide name and refusal to provide shield number against PO Bang. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of August 16, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed by § 87(2)(b) in regards to this incident [BR 10].
- As of August 16, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed by § 87(2)(b) in regards to this incident [BR 11].

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 3

Investigator: Moriba Geoffroy Investigator Moriba Geoffroy 6/29/2023
Signature Print Title & Name Date

Squad Leader: Rolando Vasquez IM Rolando Vasquez 6/29/2023
Signature Print Title & Name Date